BRUNO FUNGAYI TAKAWIRA
versus
FENG GUO
and
HWANGE COAL GASIFICATION COMPANY

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 4 June 2026

Unopposed court application for default judgment

R. T. Mutero, for the plaintiff
No appearance for the defendants

CHITAPI J: The parties are as cited in the heading. The plaintiff is Bruno Fungayi Takawira. The first defendant is Feng Guo. They both are male adults of Harare. The second defendant is Hwange Coal Gasification Company (Private) Limited. It is a duly registered company according to the laws of Zimbabwe and operates business in Zimbabwe.

The plaintiff claims the sum of five million United States dollars (US 5 000 000.00) as "defamation damages and contumelia" together with interest at the prescribed rate from the date of judgment to the date of full payment. The plaintiff also claimed for an order of "removal of retraction of the defamatory article from the recipients and from social media platforms" and costs of suit.

The facts that gave rise to the claim were pleaded in the declaration as arising from the alleged publication on 24 February 2024 by the first defendant who wrote and signed on the second defendant's letterhead, an article titled

> "REQUEST TO STOP SMUGGLING OF COKE TO ZAMBIA AND UNLAWFUL SALE OF STOLEN COKE WITHIN ZIMBABWE"

It was alleged in the declaration that the article was published without confirming the veracity of the allegations made against the plaintiff. It was pleaded that the article portrayed the plaintiff as an unethical and lawless person who used unethical and corrupt practices of smuggling to Zambia and unlawfully selling stolen coke within Zimbabwe.

It was pleaded that the alleged defamatory article was widely read by the general public in Zimbabwe and beyond and that it was electronically and physically distributed. It was alleged that the publication was distributed to the police and to the Zimbabwe Anti-Corruption Commission.

The plaintiff pleaded that the article was motivated by malice and that it had the effect of lowering in the eyes of the public the plaintiff's standing, personal and business reputation and dignity. The plaintiff pleaded that he is a successful businessman and law-abiding citizen. He pleaded that the publication humiliated him in his dignity. He also pleaded that the plaintiff has not retracted the article. The plaintiff considered a recompense of US$5 000 000.00 a justifiable amount which defendants should pay to him alone for their defamation of the plaintiff.

The action in this matter was filed under case No HCH 4339/24. The application for default judgment was filed under case No HCH 5818/24. The opening of two records for the same case caused a tracking issue as both matters need orders for closure. This judgment must therefore be filed in both records and the matters marked as completed.

The plaintiff set down the matter on the unopposed roll on 8 January 2025. On that date however, the matter was postponed to 17 January 2025 as the record was not in order. In particular, the plaintiff did not separately file the application for default judgment but intended to orally speak to the application being made. This approach was adopted in almost all cases set down before the court. I was inclined to non-suit three quarters of the enrolled matters. This approach meant that the next roll was going to be over congested. It is for this reason that I ordered that all unsuited matters in which counsel consented, be re-enrolled on 17 January 2025 so that I deal with them myself in a specially convened roll. There was therefore for week beginning 13 January 2025 the usual roll on 15 January 2025 and the special roll of 17 January 2025 which I presided.

The plaintiff complied with the query and filed a notice of application to indicate that he applies for default judgment in terms of the draft order and set out *ex facie* the same notice the grounds relied upon for the application. Default judgments are not application made orally in the course of a hearing when made in the unopposed court. Rule 23(1) of the High Court Rules 2021 provides that in cases which are not for a debt of liquidated demand only and there is no appearance to defend entered, the plaintiff who seeks judgment

> "shall set down the case for judgment on an appropriate day specified in these rules relating to set down of unopposed matters, without notice to the defendant…….".

The setting down of the matter does not mean or imply that the plaintiff simply files a notice of set down without paginating and indexing relevant documents and preparing a notice of the application which sets out the grounds for the application. The procedure to be followed is much the same as done on debt or liquidated demand by chamber application in terms of rule 22. Counsel cannot just stand up to give a verbal narrative of the application. Judgment is sought on the filed papers hence the usual submission by counsel that "I submit that my papers are in order and request for judgment in terms of the draft order." It follows from the above that for the papers to be in order they must themselves give a narrative of why the case is enrolled or set down. There ought to be a written application for default judgment. Therefore, the default judgment application must be separately written and form part of the filed papers of the case. The application must be written and not made verbally because rule 57(1)(a) and (b) provides for written application as follows:

> "57. (1) Subject to this rule, all applications made for whatever purpose in terms of these rules or any other law, other than applicants made orally during the course of a hearing, shall be made— (a) as a court application, that is to say, in writing to the court on notice to all interested parties having a legal interest in the matter; or (b) as a chamber application, that is to say, in writing to a judge."

The plaintiff in compliance prepared a consolidated record that comprised a formal application for default judgment and the grounds thereof. The plaintiff averred that, the summons was duly served on the defendants at their address for service at 2 Montclair, Borrowdale served upon Tatenda Sangare described by the Sheriff in the return of service as a responsible person at the defendants place of business on 30 October 2024. I am satisfied that proper service was effected on the defendants. No appearance was entered by the defendants.

In relation to justifying the claim it is necessary to quote the alleged defamatory article written on the letterhead of the second defendant. It reads as follows

> "No 1 Jacaranda Avenue
> No 2 Colliery
> Hwange
> 15 February 2024
> The Manager
> Zimra Office
> Hwange Branch
>
> <u>REF Request to stop smuggling of Coke to Zambia and unlawful sale of stolen Coke within Zimbabwe</u>

Please be advised that as HCGC we want to bring to your attention that Lisa Maropafadzo and her team of thugs or assailants stole and unlawfully removed approximately 1400 tonnes of Coke with estimated value of USD 360 000.00 from the HCGC Plant as from 13 February 2024 to 14 February 2024.
We are reliably informed that the stolen Coke is currently stockpiled at Mr. Bruno Takawira's Premises near the Hwange VID Premises. We have information that the above-mentioned want to smuggle the stolen Coke to Zambia or to sell it within Zimbabwe.
May you assist in stopping the unlawful sale of the Coke and its movement? We have since made a report of the above-mentioned theft to Hwange Police Station.
See the attached list of trucks used to remove Coke from HCGC Plant.

For further information do not hesitate to contact us on the following cell numbers. Mr B Thabethe 0779063546 or Mr E Dhlamini: 0773735597

Cc; Zimra Head Office Harare
: ZACC
: Immigration Office, Victoria Falla
: MMCZ Harare Office
: PGHQ Harare, Bulawayo"

The article self-evidently impugns the character of the plaintiff. It portrays the plaintiff as an accomplice of one Lisa Maropafadzo and her "thugs" or assailants who unlawfully removed 1 400 tonnes of coke from the second defendants' plant over two days between 13 and 14 February 2024. The article further alleged that the stolen coke was stock piled at the plaintiff's premises and that the plaintiff intended to smuggle the coke into Zambia or to sell it within Zimbabwe.

The plaintiff pleaded that the article was published with malice and defamed him since he was portrayed as a thief of the alleged stolen coke and that it implied that his business would benefit from selling the unlawfully obtained coke. The plaintiff who described himself as a successful businessman and law-abiding citizen pleaded that the defamatory article lowered him in the eyes and estimation by the public, was false, reckless and injurious to his character and reputation. The plaintiff pleaded that the defendants did not apologise or retract the article despite demand. The plaintiff pleaded that the sum of US$ 5 000 000.00 which he seeks is sufficient to compensate him for his loss of dignity and reputation.

Having determined that the article is evidently defamatory of the plaintiff, the issue remaining for determination is whether the relief sought is justified and proven. The plaintiff pleaded that he is a marketing consultant and that his reputation is his greatest tool of trade. He pleaded without proffering evidence he lost deals worth one hundred and ten million (US$ 110 000.00) American dollars in revenue because of market resistance and suspicions

concerning his integrity and credibility. He pleaded that the persons to whom the article are addressed are his essential stakeholders in his operations.

The plaintiff averred that he was under investigation by the Zimbabwe Revenue Authority as a result of the article. He listed a number of implications which go with the ZIMRA investigations. In my own opinion however, being under investigations by ZIMRA is something that the law allows. The issue of concern is the disruption to business operations and lost time that the plaintiff then experiences as a result of the investigations requiring his attention and presence. As long as what ZIMRA does is within the law, it does not matter that the investigation is done on the initiative of the article or other initiatives. The further concern and negative effect of making a false report in dealing with a ZIMRA investigation. There was however no narrative given by the plaintiff of such losses. The plaintiff only referred to implications in his statement headed "Justification for claim" or in the affidavit of evidence.

It is common cause that in case No HCH 2141/24, the finding was made by ZHOU J (as he then was) that the second defendant herein should retract the letter in issue herein. The applicant therein was *Paarlweb Investments (Pvt) Ltd* v *Hwange Coal Gasification Company (Pvt) Ltd* (second defendant herein) and Afro Chine Smelting (Pvt) Ltd. The judgment noted the connection between the plaintiff herein and the applicant in that case. The court noted in that case in judgment No HH 248/24 per ZHOU J that when considering whether an article is defamatory, the whole article must be considered. Reliance was made on the cases *Ndewere* v *Zimbabwe Newspapers and Anor* 2001(2) ZLR 508 at 509 F and *Rogaly* v *General Imports (Pvt) Ltd* 1948(1) SA 1216 (C). Significantly though it accepted in the absence of controverting evidence that the plaintiff is a marketing manager of the applicant and was acting in such capacity vis-a-vis the coke consignment in dispute.

It is noted that the plaintiff wants the second defendant herein to retract the contents of the letter in issue. The plaintiff averred that the second defendant did not retract the letter. The non-retraction had a direct effect on the plaintiff in that the allegations made against him remain. The failure to withdraw the letter on the part of the second defendant amounts to a contempt of the court order in case No HCH 2141/24. However, I am not dealing with a contempt application. What I take note of is that this court made a finding that the letter was defamatory and injurious. I have also made the same finding.

The plaintiff through counsel and in the heads of argument correctly submitted that in assessing the amount of damages to grant in a defamation suit, the following factors are considered

a) The context and nature of the defamatory publication
b) The plaintiff standing in society
c) The extent of the publication
d) The probable consequences of the defamation
e) The conduct of the defendant
f) The recklessness of the publication
g) Comparable awards of damages in similar suits
h) The declining value of money

The following cases which I considered to be relevant were cited. *Manyange* v *Mpofu and Ors* HH 162/11; *Tekere* v *Zimpapers(1980) Ltd and Anor* 1986(1) ZLR 275 HH289; *Levy* v *Modus Publications* (Pvt) Ltd 2000(2) ZLR 341 (H); *Mnangagwa* v *Nyarota* HH 153/04; *Masuku* v *Goko and Anor* 2006(2) ZLR 341 (H) 350; *Garwe* v *Zimind Publishers (Pvt) Ltd and Ors* 2007(2) ZLR 207(H) 236-242; *Macheka* v *Metcalfe* HH 62/07.

Damages for defamation do not have a mathematical formula to determine them because they do not involve physical injury. The court must however cumulatively consider the factors and not individually. In the case of *McCarey* v *Associated Newspapers Ltd and Ors* [1963] 3 All ER 947 (CA) 959, DIPLOCK L J stated

> "in an action for defamation, the wrongful act as is damage to the plaintiff's reputation. The injuries which he sustains may be classified under two heads
>
> i. The consequences of the attitude adopted to him by other persons as a result of the diminution of the esteem in which they held him because of the defamatory statement; and
> ii. The grief or annoyance caused by the defamatory statement to the plaintiff himself. It is damages under the second head which may be aggravated by the manner in which or the motives with which the statement was made or persisted in …..
>
> Under head (i) ….it may be possible to prove pecuniary loss, such as loss of a practice or employment or ability to obtain fresh appointments. No attempt has been made in this case to prove that. The major consequence under (i), however, may be purely social and lie in the attitude shown to the plaintiff by persons with whom he comes into social or professional conduct. Neither this kind of injury under head (i) nor grief or annoyance caused to the plaintiff himself under head (ii) involves pecuniary loss. In putting a money value on these kinds of injury as the law requires damages awarding tribunals to do so, they are being required to attempt to equate the incommensurable. As in the case of damages for physical injuries, it is impossible to say that any answer looked at in isolation is right or that answer is wrong. Nevertheless, justice is not justice if it is arbitrary or whimsical; if what is awarded to one plaintiff for one injury bears no relation at all to what us awarded to another plaintiff for another injury of same kind ….."

It follows from the above that the court gives a value judgment which must however be reached after considering the principles I have set out. The plaintiff averred that he

suffered social stigmatization by the public generally and lost a business deal. Details of the last business deal were not given and the court was not assisted in that regard. It is however to be noted that the choice of addresses was a deliberate one. The bodies cited were given the impression that the plaintiff is a thief or dishonest person to be watched over or investigated. The bodies were told that the plaintiff intended to commit further offences of selling the stolen coke within Zimbabwe as a well as smuggle some of it out of the country. The defendants were activated by malice. The defamation was serious. The publication was reckless.

There are however no comparable cases to the facts of this matter which were referred to me nor did I find any on my own office research. It is however unlikely that a like case would be easy to come by. The court may be guided by the principle set out by WINDEYER J in *Uren* v *John Fairfax and Sons (Pty) Ltd* (1967) 117 CLR 118 at 150 where the learned judge stated;

> "it appears to me that, properly speaking a man defamed does not get compensation for his damaged reputation. He gets damages because he was injured in his reputation, that is simply because he was publicly defamed. For this reason, compensation by damages operates in two ways – as a vindication of the plaintiff to the public and as a consolation to him for a wrong done. Compensation is here as a solatium rather than a monetary recompense for harm measurable by money"

It is also true that the court must estimate the amount of satisfaction for the loss of the plaintiff's good name and reputation *ex aequo et bono*. Recklessness in the publication increases the amount of damages. The defendants were reckless because they did not investigate or verify the true facts of the plaintiff's involvement before labelling him a thief and smuggler. Although the plaintiff pleaded that the defamatory article was circulated on social media, no evidence to this effect was proffered. Without such evidence the court cannot search by itself for the social media platforms in which the article was disseminated. The lack of such evidence has the effect that the court cannot meaningfully gauge the extent of the publication. The effect of the lack of such proof diminishes the level of damages in a case such as this one wherein a large sum of money is claimed. This however does not render the defamation any less serious save that the localised extent of publication in turn affects the amount which the court awards.

The plaintiff claimed the sum of US$ 5 000 000.00. The amount on the face of it appears to be a colossal one especially given the state and size of the Zimbabwe economy and damages amounts which courts have awarded in defamation suits. I was not referred to any

case where damages running into millions of dollars have been awarded. The sum of five million United States dollars may appear to be unconscionable. However, a person's damages reputation is not a matter of correction by any amount. In other words, one can argue that no amount of money can replace a damaged reputation. Indeed, it is so. The position is that one does not say for calling a person a thief the sum of X dollars will correct or rub that stigma off.

In the case of *Cascell and Company Ltd* v *Broome and Anor* [1972] 1 All ER 801 (CA) 836, it is stated thus

> "damages for any tort are or ought to be fixed at a what is right and good or just and fair on the circumstances of each case."

In *casu*, given the plaintiff's pleaded standing as a business consultant and of his own person, the damage to his integrity and honesty is immeasurable. It is also made worse by the fact that another corporate and its agent being the first and second defendants are the ones who perpetrated the defamation. The defamatory article has bot been retracted despite the finding by the court as per ZHOU J that the letter should be withdrawn as it was defamatory. The fact that the plaintiff was not party to that case does not detract from the fact that the court deemed the letter to be defamatory and that the second defendant should retract it. It has not to the plaintiff's knowledge retracted the article.

I make the finding that the defamation in this case was of a serious nature where the defendants with resolve penned the defamatory article and directed it to the offices which deal with crime and taxation. Malice was present. Recklessness was present. No retraction or apology even after the court ruled on the defamatory nature of the letter worsens the position in that the defendants do not care about the damage which they caused to the plaintiff's good name and reputation. The defendants have not apologized or retracted the article.

I nonetheless consider that the sum of US$ 5 000 000.00 as claimed is excessive. Corporates are expected to play fair in the business world and should not injure the reputations of other like bodies or individuals who have to do with the business of those corporates. The individual must equally be protected in his or her integrity and reputation. Exemplary damages are justified to be awarded in this case. Counsel for the plaintiff properly submitted as follows in paragraph 1 of his heads of argument;

> "In assessing the quantum of damages in a defamation case, it is necessary to consider a variety of factors. These include the following: the content and nature of the defamatory publication; the plaintiff's standing in society; the extent of the publication; the probable consequences of the defamation; the conduct of the defendant; the recklessness of the

publication; comparable awards of damages in other defamation suits; and the declining value of money; *Manyange* v *Mpofu and Ors*; *Tekere* v *Zimbabwe Newspapers (1980) Ltd & Another*, *Shamuyarira* v *Zimbabwe Newspapers (1980) Ltd & Another; Levy* v *Modus Publications (Pvt) Ltd; Mnangagwa* v *Nyarota & Another; Masuku* v *Goko & Another; Garwe* v *Zimind Publishers (Pvt) Ltd & Others*, and *Macheka* v *Metcalfe* HH 62/07"

Despite being properly directed as quoted, counsel scantily dealt with the factors which he properly noted. The heads of argument are generalised. He noted that the defamatory letter painted the plaintiff as a criminal and dishonest businessman and a thief. He submitted that the defamatory letter had harmed the plaintiff's business relationship and that his chances of forging new business relationships has been diminished.

The plaintiff's counsel and indeed the plaintiff in the affidavit of evidence did not deal with the other pertinent factors which the court considers in assessing the level of damages

Significantly, the plaintiff's counsel did not relate to comparable cases. As already noted, to award a sum of US$ 5 million in defamation damages in this country at this time would be a first. The amount is within the court's jurisdiction. That is not the point. The point is that it is an amount that is very high. The plaintiff's counsel did not address the issue of the amount except to ask for an order as prayed for. I am not aware of any case in this jurisdiction in which damages exceeding US$ 100 000 have been granted by the court. The case of *Mahere* v *Edmund Kudzayi*, was a default judgment granted on 21 May 2025. The claim was based on an alleged false publication of and concerning *Mahere* by *Kudzayi* to the effect that Mahere had an extramarital affair with a local businessman and that the affair led to the collapse of that businessman's marriage. The court records indicate that under judgment No HH 573/25 dated 23 Sepetmber 2025, MAMBARA J stayed execution of the default judgment pending the determination of a rescission of judgment application which had been filed by the defendant herein. For purposes of this judgment, I merely point out I am not aware of any award that exceeds that amount having been granted in this jurisdiction.

In *casu* however, the defamation involves a corporate body and not just an individual smearing another individual. The false allegations are serious and involve an alleged theft of a large amount of coke. Any reasonable person who hears the allegations will describe the plaintiff as a brazen thief. The defamation is of a more serious magnitude than that in the *Mahere* case which I do not belittle or condone in any way. Corporate bodies should not be seen engaging in spreading defamatory and injurious falsehood which hurt other businessmen or business entities. I am therefore inclined in this case to award the plaintiff damages in the sum of US$500 000.00.

Accordingly, I grant an order as follows

IT IS ORDERED

1. Judgment for the plaintiff
2. The first and second defendant jointly and severally the one paying the other to be absolved to pay the plaintiff the sum of US$500 000.00 (Five Hundred Thousand United States Dollars) calculated in ZiG at the interbank rate applicable on the date of this judgment with interest calculated thereon at the prescribed rate from the same date to the date of full payment.
3. The first and second defendants jointly and severally the one paying the other to be absolved to pay costs of suit.

CHITAPI J:……

Tabana and Marwa Legal Practitioners – plaintiff's legal practitioners